

Court No. - 11

Case :- APPLICATION U/S 482 No. - 11604 of 2023

Applicant :- Anoop Kumar

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home Deptt. Lko. And Another

Counsel for Applicant :- Mohiuddin Khan, Mohd. Zaid Khan

Counsel for Opposite Party :- G.A.

Hon'ble Saurabh Lavania, J.

Heard Mr. Shashank Tilahri, learned counsel for the applicant, learned A.G.A. for the State and perused the record.

Present application has been moved by the applicant for setting aside/quashing the impugned charge sheet No. 52 dated 09.03.2016 submitted in Case No. 57 of 2016, under Section 135 of the Electricity Act, 2003, Police Station- Bangarmau, District- Unnao and entire proceedings of Special Session Trial No. 65 of 2017 (State vs. Anoop Kumar Patel) pending before Special Judge E.C. Act, Court No. 4, Unnao.

For the purposes of entertaining this application as also granting interim protection, learned counsel for the applicant submitted that the proceedings, in issue, in absence of inspection report as indicated in Provision 8.5 of Chapter 8 of Electricity Supply Code, 2005, cannot not continue. He also submitted that this Court in almost similar facts and circumstances of the case granted interim protection vide order dated 09.11.2023 passed in APPLICATION U/S 482 No. 11139 of 2023. As such, indulgence of this Court is required in the matter.

The order dated 09.11.2023 on reproduction reads as under:-

"1. Heard Mr. Shashank Tilahri, learned counsel for the applicant, learned A.G.A. for the State and perused the record.

2. Present application has been moved by the applicant for quashing the summoning order dated 25.07.2019 passed by Additional Sessions Judge/Special Judge, Lakhimpur Kheri in Case No.79/2019 arising out of F.I.R. No.1477 of 2018 U/S 135 of the Electricity Act, 2003, P.S. Kotwali Sadar, District- Kheri.

3. Learned counsel for the applicant submitted that charge sheet was submitted by the Investigating Officer in the most mechanical manner. He further submitted that no such inspection was done, therefore, no inspection report was provided to the applicant. He further submitted that neither any

recovery of cable was shown by the Investigating Officer nor statement of any witness of such inspection was recorded, therefore, kind indulgence of this Court is necessary.

4. Learned A.G.A. opposed the prayer of applicant and submitted that after detailed investigation, charge sheet was filed and the defence of applicant cannot be considered at this stage, therefore, application is liable to be dismissed.

5. Considering the submissions of learned counsel for the parties, going through the contents of application, as well as other relevant documents, as it is specific case of the applicant that no inspection was done by the team and only on the basis of presumption, the F.I.R. of case in question was lodged and no recovery of cable was shown by the team, as the inspection report was also not handed over, therefore, matter requires consideration.

6. Issue notice to respondent no.4 returnable at an early date.

7. List this case on 22.01.2024.

8. In the meantime, Investigating Officer of the case in question/S.H.O., P.S. Kotwali Sadar, District- Kheri shall file his personal counter affidavit.

9. No coercive action shall be taken against the applicant till the next date of listing."

Taking note of the aforesaid, this Court finds that the matter requires consideration.

Accordingly, issue notice to the opposite party No. 2. Steps in this regard be taken within seven working days.

List/put up this case on 22.01.2024 alongwith APPLICATION U/S 482 No. 11139 of 2023.

In the meantime, Investigating Officer of the case, in question, shall file his personal affidavit in response to this application.

Till the next date of listing, no coercive action shall be taken against the applicant so far as the proceedings, in issue, are concerned.

Order Date :- 29.11.2023

Arun/-



**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

APPLICATION U/S 482 No. - 11604 of 2023

Anoop Kumar

.....Applicant(s)

Versus

State Of U.P. Thru. Prin. Secy. Home Deptt. Lko.
And Another

.....Opposite
Party(s)

Counsel for Applicant(s) : Mohiuddin Khan, Mohd.Zaid Khan
Counsel for Opposite Party(s) : G.A.

Court No. - 16

HON'BLE SHREE PRAKASH SINGH, J.

1. As prayed by learned AGA for the State, four weeks' and no more time is granted to file counter affidavit.
2. List this case after four weeks.
3. Interim order, if any, is extended till the next date of listing.

(Shree Prakash Singh,J.)

July 2, 2026
V. Sinha